

21STCV37652 21STCV37652

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 21STCV37652 Hearing Date: July 7, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

7, 2026

CASE NAME: Arleen

M. Asadoorian v. General Motors, LLC

CASE NO.: 21STCV37652

MOTION

FOR ATTORNEY'S FEES AND COSTS

MOVING PARTY: Plaintiff

Arleen M. Asadoorian

RESPONDING PARTY(S): Defendant General Motors LLC

REQUESTED RELIEF:

1. An

order awarding \$76,964.65 in attorneys' fees and costs.

TENTATIVE RULING:

1. Motion

for attorneys' fees and costs is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On October 13, 2021, Plaintiff Arleen M. Asadoorian (Plaintiff) filed a Complaint against Defendant General Motors, LLC with six causes of action for: (1) violation of Civ. Code § 1793.2(D); (2) violation of Civ. Code § 1793.2(B); (3) violation of Civ. Code § 1793.2(A)(3); (4) breach of express written warranty; (5) breach of the implied warranty of merchantability; and (6) fraud by omission.

According to the Complaint, Plaintiff purchased a Chevrolet Cruze in February 2011 which contained or developed defects. The Subject Vehicle required multiple repairs, but Defendant failed to replace the vehicle.

On November 17, 2021, Defendant filed a demurrer with motion to strike.

On February 10, 2022, Plaintiff filed a First Amended Complaint (FAC).

On March 10, 2022, Defendant filed a demurrer to the FAC with motion to strike which the court SUSTAINED without leave to amend.

On July 25, 2022, Defendant filed an Answer.

On May 17, 2023, the parties stipulated to continue trial and all related dates.

On June 12, 2024, the court held a Final Status Conference. Plaintiff did not appear. The court continued the Final Status Conference to June 17, 2024.

On June 17, 2024, the court held the continued Final Status Conference. Plaintiff appeared telephonically but did not respond when the court called the matter. The court called the matter for Trial at 10:28 a.m. Plaintiff did not respond. On the court's own motion, the court dismissed

the matter without prejudice pursuant to CCP § 581(b)(5).

On June 18, 2024, Plaintiff moved ex parte for an Order setting aside the dismissal which the court DENIED.

On June 28, 2024, Plaintiff filed a motion to set aside/vacate dismissal which the court GRANTED.

On June 10, 2025, Plaintiff filed a notice of settlement of entire case.

On August 21, 2025, Plaintiff filed a stipulation and order for settlement and dismissal pursuant to CCP § 664.6 which the court GRANTED.

On August 22, 2025, the court ordered the matter dismissed pursuant to the parties' stipulation and sent notice to the parties.

On January 22, 2026, Plaintiff filed the instant motion for attorneys' fees. On June 22, 2026, Defendant filed an opposition. Plaintiff filed replies on June 29, 2026.

LEGAL STANDARD:

A prevailing buyer in an action under Song-Beverly "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).) By permitting buyers who prevail under Song-Beverly to recover their attorneys' fees, "our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible." (Murillo v. Fleetwood Enterprises, Inc. (1998) 17 Cal.4th 985, 994.)

The prevailing party has the burden of showing that the requested attorney fees are reasonable. (Robertson v. Fleetwood Travel Trailers of California Inc. (2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees "is not necessarily entitled to the

compensation of the value of attorney services according to [his or her] own notion or to the full extent claimed.” (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) If the “time expended or the monetary charge being made for the time expended are not reasonable under all circumstances, then the court must take this into account and award fees in a lesser amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

A calculation of attorneys’ fees for a Song-Beverly action begins with the “lodestar” approach, under which the Court fixes the lodestar at “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004-1005.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Ibid.)

“It is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 39.) It is also appropriate to reduce a fee award based on “inefficient or duplicative efforts” in the billing record. (Id. at p. 38.) However, the analysis must be “reasonably specific” and cannot rely on general notions about the fairness of the fee award. (Kerkeles v. City of San Jose (2015) 243 Cal.App.4th 88, 102.) Moreover, in conducting the analysis, courts are not permitted to tie any reductions in the fee award to some proportion of the buyer’s damages recovery. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 39.)

The lodestar figure may also be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49; PLCM Group, Inc. v. Drexler (2000)

22 Cal.App.4th 1084, 1095.) The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)

ANALYSIS:

Plaintiff contends she is entitled to fees and costs as the prevailing party and that the fees sought are reasonable.^[1] GM argues that the motion is untimely and the fees requested are unreasonably high. Plaintiff replies that the motion is timely, GM's objections to the fees are unsupported, and their fees remain justified.

Timeliness

"A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court--including attorney's fees on an appeal before the rendition of judgment in the trial court--must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case." (Cal. Rules of Court, rule 3.1702(b)(1).) Unless otherwise provided, a notice of appeal must be filed on or before the earliest of: "(A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, showing the date either was served;" (Cal. Rules of Court, rule 8.104(a)(1)(A).)

Here, the motion is untimely. On August 22, 2025, the court clerk served the dismissal of the case on the parties. (August 22, 2025 Dismissal Order and August 21, 2025 Clerk's Certificate of Service by Electronic Service.) This started the 60-day clock on Plaintiff's deadline to file the motion under rule 8.104(a)(1)(A) which provides for service of the filed-endorsed copy of the judgment (here, the dismissal) showing the date it was served. Plaintiff filed this motion well after the 60-day deadline ran in October 2025. The motion is therefore untimely.

Accordingly, the court DENIES Plaintiff's motion for attorneys' fees and costs.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
for attorneys' fees and costs is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 7, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]
The court denies Plaintiff's request for judicial notice as immaterial to this ruling.